

GORSUCH, J., dissenting

England and Portugal—were out of bounds. And anyone familiar with the American federal system likely would have thought the rule applied with even greater force to successive prosecutions by the United States and a constituent State, given that both governments derive their sovereignty from the American people.

Unable to summon any useful preratification common law sources of its own, the government is left to nitpick those that undermine its position. For example, the Court dismisses *Beak* because “*Hutchinson* is discussed only in the defendant’s argument in that case, not the court’s response.” *Ante*, at 698. But the *Beak* court did not reject the *Hutchinson* argument, and counsel’s use of the case sheds light on how 17th- and 18th-century lawyers understood the double jeopardy bar. The Court likewise derides *King v. Thomas* as “totally irrelevant” because in the 17th century, Wales and England shared the same laws. *Ante*, at 698. But our federal and state governments share the same fundamental law and source of authority, and the Wales example is at least somewhat analogous to our federal system.⁴³ Finally, the Court complains that *Roche*’s footnote citing *Hutchinson* was added only in 1800, after the Fifth Amendment’s ratification. *Ante*, at 697–698. But that is hardly a point for the government, because even so it provides an example of a later reporter attempting to describe the *pre-existing* state of the law; nor, as it turns out, was the footnote even essential to the *Roche* court’s original analysis and conclusion reached in 1775, well before the Fifth Amendment’s ratification.⁴⁴ And among all these

⁴³ Indeed, though England ruled Wales at the time, a contemporaneous lawyer might have thought that Wales’ authority to prosecute a defendant derived at least in part from its earlier status as “an absolute and independent Kingdom” rather than purely from authority delegated by England. 1 Keb. 663, 83 Eng. Rep. 1172 (K. B. 1663); see *United States v. Lara*, 541 U. S. 193, 210 (2004).

⁴⁴ Indeed, everything that matters was contained in the 1775 version of the *Roche* case report. *Roche* was indicted in England for a murder committed in South Africa. “To this indictment Captain Roche pleaded